

TACTICAL HOLD

While a slow down in the negotiations may be useful, a prolonged hold could see the odds of the deal going through dwindling. Here's why.

■ By Raj Chengappa

Henry J. Hyde, whose name now precedes the Act that facilitates the Indo-US nuclear deal, is no more a member of the US Congress. Hyde didn't stand for reelection when it came up in late 2006, and among his last Congressional acts was to pilot the controversial nuclear bill through both Houses of the Congress. While he retired to the comforts of a tony suburb in Chicago, the Hyde Act, as it is known, has become a Katrina that threatens to swamp the UPA Government.

After weeks of stand-off the Government yielded to the Left's demand to put on hold the operationalisation of the deal till a high-powered committee goes into its objections. The key question remains: Is this a tactical pause or a prolonged hold that could lead to the death of the deal? A go slow spanning a couple of weeks will not damage the deal's chances and may even strengthen the Government's hand as it crosses the major hurdles (see box) left to make it operational. But if the hold goes beyond a month it could result in a spiral of delays that could unravel the entire deal.

Where the Left struck hard was with its demand that negotiations over India-specific safeguards with the International Atomic Energy Agency (IAEA) be halted till the issue is sorted out. In the absence of such negotiations, the Government cannot proceed with the other steps to get the deal operationalised. This includes getting the concurrence of the 45-member Nuclear Suppliers Group (NSG) to lift the ban on nuclear trade against India similar to that of the US legislation. Only after both the IAEA safeguards and the NSG exemptions will the 123 Agreement be submitted to the US Congress for an up and down vote.

The timing of the operationalisation of the deal is linked with the ending of the Bush presidency in December 2008. This coincides with the elections for the entire House of Representatives and one-third of the Senate. Played backwards it would mean that by March 2008, much of the

AFP

GATEKEEPERS: The IAEA head office in Vienna



International Atomic Energy Agency

ACTION: India has to negotiate a specific agreement with the agency that would bring its civilian nuclear plants under safeguards in a phased manner.

DIFFICULTY: The Left doesn't want India to go to IAEA yet. Since India already has other safeguard pacts with the agency, it could have moved fast.

DEADLINE Safeguards pact by October 2007

Congress would be in election mode and the Bush administration may find getting a consensus an uphill task. Given the resistance to the deal in the US Congress, the Government needs a determined president like George W. Bush to push it through. The next president may not be as helpful.

If there is only a short hold, M.R. Srinivasan, former chairman of the Atomic Energy Commission, estimates that the IAEA safeguards agreement should be in place by end October. After India works out a suitable IAEA safeguards regime, the US will approach the NSG members to give India similar exemptions in atomic trade as it has done. Shyam Saran, the prime minister's special envoy, has already visited Russia, Germany, Norway, Sweden, Ireland, Japan,